



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DEC 15 2003

DOT-E 12269
(FOURTH REVISION)

EXPIRATION DATE: November 30, 2005

1. GRANTEE: Solutia Inc.
St. Louis, Missouri
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the in-plant use of 28 DOT Specification 111A100W tank cars, containing certain hazardous materials, for in-plant storage and transportation over one railroad crossing-at-grade to the adjoining plant site. This exemption provides no relief from the Hazardous Material Regulations (HMR) other than as specified herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §173.31(b)(6)&(f).
5. BASIS. This exemption is based on Solutia Inc's. application dated November 17, 2003, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Environmentally hazardous substances, liquid, n.o.s.	9	UN3082	PG III
Chlorobenzene	3	UN1134	PG III
o-Dichlorobenzene	6.1	UN1591	PG III
Environmentally hazardous substances, solid, n.o.s.	9	UN3077	PG III

7. SAFETY CONTROL MEASURES:

a. PACKAGINGS: Packagings prescribed are 28 DOT Specification 111A100W tank cars numbered as follows:

GATX 9841	ITLX 220826	
ITLX 220828	ITLX 220833	ITLX 220834
PLCX 220209	PLCX 220324	PLCX 220351
PLCX 220347	PLCX 221181	PLCX 221182
PLCX 221183	PLCX 221184	PLCX 221185
PLCX 221189	PLCX 221190	PLCX 221192
PLCX 221193	PLCX 221194	PLCX 221195
PLCX 221198	PLCX 221199	PLCX 221200
UTLX 68024	UTLX 68038	PLCX 220217
UTLX 68040	UTLX 650456	

b. MARKING: The tank cars must be marked with "DOT E-12269" in accordance with the provisions in § 172.302(c). In addition, the tank cars must be marked in 4-inch letters, "IN-PLANT SERVICE ONLY" or "PLANT SERVICE ONLY".

8. SPECIAL PROVISIONS:

a. The tank cars covered under this exemption are authorized for in-plant storage and transportation between the main plant and the storage track located approximately 600 feet west of the main plant by crossing State Highway 3.

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b. Solutia, Inc. must notify the Alton and Southern Railroad and the Terminal Railroad Association of St. Louis that the tank cars covered under this exemption are designated for plant service only.

c. Solutia, Inc. must arrange with the Association of American Railroads to identify cars in the UMLER system to remove cars from interchange service. The Federal Railroad Administration (FRA) is to be provided with confirmation of this control.

d. The tank car movement to or from the storage track may not exceed 10 cars in length.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: The FRA is to be notified if any unusual incident occurs during the movement by contacting:

Federal Railroad Administration
Office of Safety Assurance and Compliance, RRS-12
Hazardous Materials Division, Mail Stop 25
1120 Vermont Avenue, N.W.
Washington, DC 20590

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

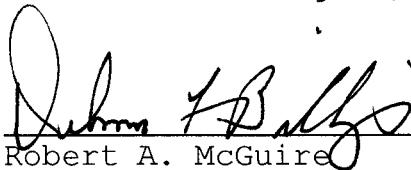
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

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Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: AM